

## 25TRCV00989 25TRCV00989

County: los-angeles

Division: Civil Law and Motion

Department: 5

Hearing date: 2026-06-25

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Case Number: 25TRCV00989 Hearing Date: June 25, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department 5

CHRISTOPHER DEAN, et al.;

Plaintiffs,

vs.

ELMER RICHARD WIDMANN;

Defendant.

Case No.:

25TRCV00989

Hearing Date:

June 25, 2026

Time:

8:30 a.m.

[tentative] Order RE:

PLAINTIFFS CHRISTOPHER DEAN AND PEGGY DEAN'S MOTION FOR ORDER DISBURSING proceeds after sale of real property

MOVING PARTY: Plaintiffs, Christopher Dean and Peggy Dean

RESPONDING PARTY: No opposition.

Plaintiffs Christopher Dean and Peggy Dean's Motion for Order Disbursing Proceeds after Sale of Real Property is CONTINUED pursuant to Code of Civil Procedure section 874.010.

The Court considers the moving papers filed on May 6, 2026. To date, no opposition brief has been filed.

## BACKGROUND

### Factual Background

On March 26, 2025, plaintiffs Christopher Dean and Peggy Dean (collectively, "Plaintiffs") filed a Complaint for Partition of Real Property against defendants Elmer Richard Widmann ("Defendant") and DOES 1 through 20.

On September 22, 2025, the Court entered an interlocutory judgment upon default and ordered the sale of the real property located at 21345 Hawthorne Boulevard, #217, Torrance, California 90503 ("Subject Property") following a default prove-up hearing. Plaintiffs were determined to have a 50% fee interest in the Subject Property, while Defendant owns an undivided 50% interest in the property. (Interlocutory Judgment, ¶¶ 1, 3.)

Dan Jensen, Jensen Realty, was appointed as the referee with the authority to sell the Subject Property by private sale to the highest bidder, free and clear of all liens. (Interlocutory Judgment, ¶ 5.) Dan Jensen was responsible for listing the Subject Property using a multiple listing service and was to be compensated in accordance with Code of Civil Procedure section 873.745. (Interlocutory Judgment, ¶ 6.)

Notice of the sale must include a location for receiving bids or offers, the date on or after which the sale may occur, a description of the property being sold, and the principal terms of the sale. (Interlocutory Judgment, ¶ 7.) The sale will adhere to the following terms and conditions: (1) Listing Price: \$410,000; (2) Terms of Sale: All Cash; (3) Conditions of Property: AS-IS; and (4) Sale subject to court order confirmation. (Interlocutory Judgment, ¶ 5.)

"Upon confirmation of such sale by this court, the net proceeds of the sale, after payment of the expenses of such sale, shall remain with escrow to be distributed only upon further order of this court concerning the allowance of such compensation, reimbursement, expenses and costs as the court deems proper, and thereafter divided among the parties hereto as follows: 50% to Plaintiffs CHRISTOPHER DEAN and PEGGY DEAN and 50% to Defendant ELMER RICHARD WIDMANN." (Interlocutory Judgment, ¶ 8.)

On February 9, 2026, the Court granted Plaintiffs' Petition for Order Confirming Sale of Real Property. (February 9, 2026, Minute Order, p. 1.) The Court signed the Order Confirming Sale of Real Property on the same day. (February 9, 2026, Minute Order, p. 1.)

On February 20, 2026, the escrow for the sale of the Subject Real Property closed, resulting in net proceeds of \$162,259.97. (Declaration of Peggy Dean, ¶ 2, Exh. A.)

## LEGAL STANDARD

“The court shall order the proceeds of sale and any security therefor to be paid, transferred, deposited in court, placed in trust, or invested in State of California or United States government obligations or interest-bearing accounts in an institution whose accounts are insured by an agency of the federal government, to or for the benefit of the persons in interest entitled thereto, as may be appropriate or as specifically provided in this article.” (Code Civil Proc., § 873.810.)

Under Code of Civil Procedure section 873.820, “[t]he proceeds of sale for any property sold shall be applied in the following order: ¶ (a) Payment of the expenses of sale. ¶ (b) Payment of the other costs of partition in whole or in part or to secure any cost of partition later allowed. ¶ (c) Payment of any liens on the property in their order of priority except liens which under the terms of sale are to remain on the property. ¶ (d) Distribution of the residue among the parties in proportion to their shares as determined by the court.”

Code of Civil Procedure section 874.010 provides that “[t]he costs of partition include: ¶ (a) Reasonable attorney’s fees incurred or paid by a party for the common benefit. ¶ (b) The fee and expenses of the referee. ¶ (c) The compensation provided by contract for services of a surveyor or other person employed by the referee in the action. ¶ (d) The reasonable costs of a title report procured pursuant to Section 872.220 with interest thereon at the legal rate from the time of payment or, if paid before commencement of the action, from the time of commencement of the action. ¶ (e) Other disbursements or determined by the court to have been incurred or paid for the common benefit.”

In partition actions, generally an award of costs and fees should be proportionally divided based on the parties’ ownership interest in the property, balanced with other equitable considerations. (Finney v. Gomez (2003) 111 Cal.App.4th 527, 545-546.) By statute, the court shall apportion the costs of partition among the parties in proportion to their interests or make such other apportionment as may be equitable. (Code Civ. Proc., § 874.040; see also Orien v. Lutz (2017) 16 Cal.App.5th 957 [fees incurred by a defendant to a partition action can be for the common benefit, and therefore allocable in part to the plaintiff, even though the defendant resists the partition].)

## DISCUSSION

Plaintiffs “move for an order disbursing the proceeds from the sale of the real property commonly known as 21345 Hawthorne Boulevard, #217, Torrance, California 90503 (the ‘Subject Real Property’) which are presently being held by American Trust Escrow - South Bay, Escrow No. 190-7338-CF.” (Motion, p. 1:25-28.)

Plaintiffs specifically request the following disbursements: (1) \$29,798.23 for attorneys’ fees and costs incurred during this case; (2) \$2,200.00 for attorneys’ fees related to the filing of this motion; (3) \$2,662.27 for costs associated with re-carpeting and painting the Subject Real Property; and (4) the distribution of any remaining sales proceeds, with 50% allocated to Christopher Dean and Peggy Dean, and 50% allocated to Elmer Richard Widmann. (Motion, p. 8:3-11.)

However, the motions lacks sufficient demonstration that the aforementioned costs were incurred or paid for the common benefit of all parties involved. Pursuant to Code of Civil Procedure section 874.010, the Court may only authorize the distribution of reasonable attorneys’ fees and expenses that were incurred or paid for the common benefit. Plaintiffs maintain that “[a]ll of the foregoing expenses were reasonably incurred for the common benefit of Plaintiffs and Defendant[.]” yet this assertion lacks adequate substantiation. (Motion, p. 7:24-26; Declaration of Peggy Dean, ¶ 5.)

Consequently, the Court CONTINUES the hearing to provide Plaintiffs with the opportunity to submit a supplemental brief, along with supporting declarations and exhibits, to adequately demonstrate that the requested attorneys’ fees and expenses were incurred for the benefit of all parties involved.

## ORDERS

Plaintiffs Christopher Dean and Peggy Dean's Motion for Order Disbursing Proceeds after Sale of Real Property is CONTINUED.

The hearing is continued until July 10th , 2026, at 8:30 a.m.

Plaintiffs Christopher Dean and Peggy Dean and their counsel must submit any supplemental briefs, declarations, and exhibit(s) five (5) court days prior to the hearing.

Plaintiffs are ordered to give notice of this Court's ruling.

IT IS SO ORDERED.

DATED: ˆJune 25, 2026ˆ

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Tamara Hall

Judge of the Superior Court